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MINISTRY OF AGRICULTURE

DEPARTMENT OF AGRICULTURE AND COOPERATION

New Delhi, dated 12th December, 2001.

Notification

G.S.R. 3, Whereas the draft of the Cereals Grading and Marking Rules, 2000 were published, as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) under the notification of the Government of India, Ministry of Agriculture, Department of Agriculture and Cooperation vide No.G.S.R. 135 dated the 31st March, 2000, in the Gazette of India, Part II, section-3, sub section (i) dated the 15th April, 2000 inviting objections and suggestions from all the persons likely to be affected thereby, before expiry of the period of forty-five days from the date on which copies of the Gazette containing the said notification are made available to the public;

And whereas, the said Gazette was made available to the public on

19th April, 2000;

And whereas, the objections/suggestions received from the public in respect of the said draft rules have been considered by the Central Government;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 and in supersession of Cereals Grading Rules, 1966 except as respects of the things done or omitted to be done before such supersession, the Central Government hereby makes the following Rules, namely:-

RULES

1. Short title, application and commencement.-

(i) These rules may be called the Cereals Grading and Marking Rules, 2001.

(ii) They shall apply to Ragi (*Eleusine coracana* L. Gaertn), Jowar (*Sorghum vulgare* Pers), Maize (*Zeamays* L.), Barley (*Hordeum vulgare* L. or *Hordeum distichon*.) and Bajra (*Pennisetum typhoideum* Rich)

(iii) They shall come into force from the date of their publication in the Official Gazette.

2. Definitions:-

(a) "Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India.

(b) "Authorised packer" means a person or a body of persons who has been granted a certificate of authorisation to grade and mark cereals in accordance with the grade standards and procedure prescribed under these rules;

(c) "Certificate of Authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark cereals with the grade designation mark;

(d) "General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e) "Grade designation mark" means the Agmark label referred to in sub-rule (i) of rule 5 or the Agmark replica referred to in sub-rule(ii) of rule 5 as the case may be;

(f) "Schedule" means a Schedule appended to these rules.

3. Grade designations:- For the purpose of these rules the grade designations shall be the names of the grades which indicate the quality of cereals as given under column 1 of Schedule-II, III, IV, V, VI and VII.

4. Definition of quality:- For the purpose of these rules, the definition of quality of cereals shall be as such as given against each grade designation from column 2 to 9 of Schedule-II, III, IV, VI, VII and column 2 to 10 of Schedule V respectively.

5. Grade designation mark:- The grade designation mark shall consist of-

(i) A label specifying name of commodity, grade designation and

bearing a design consisting of an outline map of India with the word "AGMARK" and the figure of the rising sun and resembling the design as set out in Schedule-I, or

(ii) "AGMARK Replica" consisting of a design incorporating the number of certificate of authorisation, the word "AGMARK", name of commodity and grade designation resembling the design as set out in Schedule-I.A.

Provided that the use of Agmark replica in lieu of Agmark labels shall be allowed only to such authorised packers who have been granted permission by the Agricultural Marketing Adviser or an officer authorised by him in this regard and subject to the conditions as prescribed under the General Grading and Marking Rules, 1988.

6. Method of packing:-

(i) Cereals shall be packed in gunny bags, jute bags, poly woven bags, poly pouches, cloth bags or other suitable packages which shall be clean, sound, and free from insect/fungal infestation and the packing material shall be as permitted under the Prevention of Food Adulteration Rules, 1955.

(ii) The net weight of Cereals in a package shall be, as prescribed by the Agricultural Marketing Adviser from time to time as per the Packaged Commodities Rules, 1977.

(iii) Each package shall contain Cereals of the same type and of the same grade designation.

(iv) Each package shall be securely closed and sealed.

7. Method of Marking:-

(1) The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with Rule 11 of the General Grading and Marking Rules, 1988.

(ii) In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each label or package:-

a) Name and address of the packer;

b) Place of packing;

c) Date of packing;

d) Crop year/season;*

e) Lot/batch number;

f) Net weight;

g) Grade;

h) Maximum retail Price inclusive of all taxes;

i) Best before_____month_____year.

* In case of jowar only.

(iii) The ink used for marking shall be of such quality which may not contaminate the product.

(iv) The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same do not indicate quality other than that indicating by the grade designation mark affixed to the graded packages in accordance with these rules.

8. Special conditons of certificate of authorisation: In addition to the conditions specified under the sub-rule (8) of the rule 3 of the General Grading and Marking Rules, 1988. The following shall be the special conditions of every certificate of authorisation issued for the purpose of these rules.

(i) The authorised packer shall either set up his own laboratory for have access to an approved grading laboratory for testing of cereals.

(ii) The premises shall be maintained in clean, hygienic conditions and all the operatives shall be in sound health and free from any infectious, contagious or communicable diseases;

(iii) The premises shall have adequate storage facility and free from rodent and insect infestation ;

(iv) The authorised packer shall observe all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued from time to time by the Agricultural Marketing Adviser or any other officer authorised by him in this behalf.

SCHEDULE-I

(See rule 5 (i))

(Design on Agmark label)



SCHEDULE-I (A)

(See Rules 5 (ii))

Grade designation mark

(DESIGN OF AGMARK REPLICA)



NAME OF COMMODITY-----

GRADE-----

SCHEDULE-II

(See Rules 3 and 4)

Grade designation and definition of quality of Ragi

Grade Definition of quality

Designation -----

Special requirements

Maximum limit of tolerance (per cent by weight

Moisture Foreign matter Other Damaged Immature Weevilled

----- edible grains Shrivelled grains

Organic Inorganic grains grains

1 2 3 4 5 6 7 8

Grade - I 12.0 0.10 Nil 1.0 1.0 2.0 0.1

Grade – II 12.0 0.25 0.10 1.5 2.0 3.0 0.2

Grade – III 14.0 0.50 0.25 2.0 3.0 4.0 0.3

Grade – IV 14.0 0.75 0.25 4.0 5.0 4.0 0.5

General requirements

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Ragi shall-

- a) be the dried mature grains of *Eleusine coracana* L. Gaertn;
 - b) be sweet, hard, clean, wholesome, uniform in size, shape, colour and in sound merchantable condition;
 - c) be free from added colouring matter, moulds, weevils, obnoxious substances, discolouration, poisonous seeds and all other impurities except to the extent indicated in the schedule;
 - d) Uric acid and aflatoxin shall not exceed 100 miligrams and 30 micrograms per kilogram respectively;
 - e) be free from rodent hair and excreta;
 - f) Comply with the restrictions in regard to pesticides/insecticides residue (Rule 65), poisonous metals (rule 57), naturally occurring toxic substances (rule 57-B) and other provisions prescribed under the Prevention of Food Adulteration Rules, 1955 and as amended from time to time.
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Note : In foreign matter, the impurities of animal origin shall not be more than 0.10 per cent by weight.

SCHEDULE-III

(See Rules 3 and 4)

Grade designation and definition of quality of Rabi Jowar

Grade	Defintion of quality									
designation-----	-----									
Special requirements										

Maximum limits of tolerance (per cent by weight)										

Moisture	Foreign matter	Other	Damaged	Immature	W					
----- edible grains and grains										

Organic Inorganic grains Shrivelled

grains

1 2 3 4 5 6 7 8

Grade-I	12.00	0.10	Nil	1.00	1.00	2.0	0.5
Grade-II	12.00	0.25	0.10	1.50	2.00	4.0	1.0
Grade-III	14.00	0.50	0.25	2.00	3.00	6.0	2.0
Grade-IV	14.00	0.75	0.25	4.00	5.00	8.0	6.0

General requirements

Jowar shall-

- a) be the dried mature grains of *Sorghum vulgare* pers raised in the Rabi season;
- b) be sweet, hard, clean, wholesome, uniform in size, shape, colour and in sound merchantable condition
- c) be free from added colouring matter, moulds, weevils, obnoxious substances, discolouration, poisonous seeds and all other impurities except to the extent indicated in the schedule;
- d) Uric acid and aflatoxin shall not exceed 100 miligrams and 30 micrograms per kilogram respectively;
- e) be free from rodent hair and excreta;
- f) Comply with the restrictions in regard to pesticides/insecticides residue (Rule 65), poisonous metals(Rule 57), naturally occurring toxic substances (Rule 57-B) and other provisions prescribed under the Prevention of Food Adulteration Rules, 1955 and as amended from time to time.

Note : (i) In foreign matter, the impurities of animal origin shall not be more than 0.10 per cent by weight.

(ii) Ergot affected grains shall not exceed 0.05 per cent by weight in damaged grains.

SCHEDULE-IV

(See Rules 3 and 4)

Grade designation and definition of quality of Kharif jowar

Grade	Defintion of quality									
designation-----										
Special requirements										

Maximum limits of tolerance (per cent by weight)										

Moisture	Foreign matter	other	Damaged	Immature	We					
-----	edible	grains	and	grains						
Organic	Inorgnic	grains		Shrivelled						
Grains										

	1	2	3	4	5	6	7	8
Grade-I	12.00	0.10	Nil	0.50	1.50	1.0	1.0	
Grade-II	12.00	0.25	0.10	1.00	3.00	2.0	2.5	
Grade-III	14.00	0.50	0.25	2.00	4.50	5.0	4.0	
Grade-IV	14.00	0.75	0.25	3.00	6.00	8.0	6.0	

General requirements

Jowar shall-

- a) be the dried mature grains of Sorghum vulgare pers raised in the kharif season;
- b) be sweet, hard, clean, wholesome, uniform in size, shape, colour and in sound merchantable condition;

- c) be free from added colouring matter, moulds, weevils, obnoxious substances, discolouration, poisonous seeds and all other impurities except to the extent indicated in the schedule;
- d) Uric acid and aflatoxin shall not exceed 100 miligrams and 30 micrograms per kilogram respectively;
- e) be free from rodent hair and excreta;
- f) Comply with the restrictions in regard to pesticides/insecticides residue (Rule 65), poisonous metals (Rule 57), naturally occurring toxic substances (Rule 57-B) and other provisions prescribed under the Prevention of Food Adulteration Rules, 1955 and as amended from time to time.

Note (i) In foreign matter, the impurities of animal origin shall not be more than 0.10 per cent by weight.

(ii) Ergot affected grains shall not exceed 0.05 per cent by weight in damaged grains.

SCHEDULE- V

(See Rules 3 and 4)

Grade designation and definition of quality of Maize

Grade Defintion of quality
designation-----

Special requirements

Maximum limits of tolerance (per cent by weight)

Moisture Foreign matter other Admixture Damaged Immature Weevilled

----- edible of grains and grains

Organic Inorganic grains different Shrivelled (per

varieties grains cent by

Count)

	1	2	3	4	5	6	7	8	9
Grade-I	12.00		0.10	Nil	0.50	5.00		1.00	2.0 2.0
Grade-II	12.00		0.25	0.1	1.00	10.00		2.00	4.0 4.0
Grade-III	14.00		0.50	0.25	2.00	15.00		3.00	6.0 6.0
Grade-IV	14.00		0.75	0.25	3.00	15.00		4.00	6.0 8.0

General requirements

10

Maize shall-

a) be the dried mature grains of Zea mays L.;

- b) be sweet, hard, clean, wholesome, uniform in size, shape, colour and in sound merchantable condition;
- c) be free from added colouring matter, moulds, weevils, obnoxious substances, discolouration, poisonous seeds and all other impurities except to the extent indicated in the schedule;
- d) Uric acid and aflatoxin shall not exceed 100 milligrams and 30 micrograms per kilogram respectively;
- e) be free from rodent hair and excreta;
- f) Comply with the restrictions in regard to pesticides/insecticides residue (Rule 65), poisonous metals (Rule 57), naturally occurring toxic substances (Rule 57-B) and other provisions prescribed under the Prevention of Food Adulteration Rules, 1955 and as amended from time to time.

Note : (i) In foreign matter, the impurities of animal origin shall not be more than 0.10 per cent by weight.

SCHEDULE-VI

(See Rules 3 and 4)

Grade designation and definition of quality of Barley

Grade	Defintion of quality					
designation-----	-----					
Special requirements						

Maximum limits of tolerance (per cent by weight)						

Moisture	Foreign matter	other	Damaged	Immature	Weevilled	
-----	edible	grains	and	grains		
Organic	Inorgnic	grains		Shrivelled		
Grains						

1	2	3	4	5	6	7	8
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Grade-I	12.00	0.10	Nil	0.50	1.00	2.0	0.5
Grade-II	12.00	0.25	0.10	0.50	2.00	4.0	2.0
Grade-III	14.00	0.50	0.25	1.00	3.00	6.0	4.0
Grade-IV	14.00	0.75	0.25	1.00	4.00	6.0	8.0

General requirements

Barley shall-

- a) be the dried mature grains of *Hordeum vulgare* L. or *Hordeum distichon*;
- b) be sweet, hard, clean, wholesome, uniform in size, shape, colour and in sound merchantable condition;
- c) be free from added colouring matter, moulds, weevils, obnoxious substances, discolouration, poisonous seeds and all other impurities except to the extent indicated in the schedule;
- d) Uric acid and aflatoxin shall not exceed 100 miligrams and 30 micrograms per kilogram respectively;
- e) be free from rodent hair and excreta;
- f) Comply with the restrictions in regard to pesticides/insecticides residue (Rule 65), poisonous metals (Rule 57), naturally occurring toxic substances (Rule 57-B) and other provisions prescribed under the Prevention of Food Adulteration Rules, 1955 and as amended from time to time.

Note : (i) In foreign matter, the impurities of animal origin shall not be more than 0.10 per cent by weight.

SCHEDULE-VII

(See Rules 3 and 4)

Grade designation and definition of quality of Bajra

Grade designation	Defintion of quality
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Special requirements

Maximum limits of tolerance (per cent by weight)

Moisture	Foreign matter	other	Damaged	Immature	Weevilled
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-----	edible	grains	and	grains
-------	--------	--------	-----	--------

Organic	Inorgnic	grains	Shrivelled
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Grains

	1	2	3	4	5	6	7	8
Grade-I	12.0	0.10	Nil		1.0	0.5	1.5	1.0
Grade-II	12.0	0.25	0.10		2.0	1.0	3.0	2.5
Grade-III	14.0	0.50	0.25		2.5	2.0	5.0	4.0
Grade-IV	14.0	0.75	0.25		3.0	4.0	8.0	6.0

General requirements

Bajra shall-

- a) be the dried mature grains of *Pennisetum typhoideum* Rich;
- b) be sweet, hard, clean, wholesome, uniform in size, shape, colour and in sound merchantable condition;

- c) be free from added colouring matter, moulds, weevils, obnoxious substances, discolouration, poisonous seeds and all other impurities except to the extent indicated in the schedule;
 - d) Uric acid and aflatoxin shall not exceed 100 miligrams and 30 micrograms per kilogram respectively;
 - e) be free from rodent hair and excreta;
 - f) Comply with the restrictions in regard to pesticides/insecticides residue (Rule 65), poisonous metals (Rule 57), naturally occurring toxic substances (Rule 57-B) and other provisions prescribed under the Prevention of Food Adulteration Rules, 1955 and as amended from time to time.
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Note : (i) In foreign matter, the impurities of animal origin shall not be more than 0.10 per cent by weight.

(ii) Ergot affected grains shall not exceed 0.05 per cent by weight in damaged grains.

Definitions:-

- (1) "Foreign matter" means any extraneous matter than other food grains comprising of
 - (a) "Inorganic matter" includes metallic pieces, dust, sand, gravel, stones, dirt, pebbles, lumps or earth, clay, mud and animal filth etc;
 - (b) "Organic matter" consisting of husk, straws, weeds and other inedible grains etc.
- (2) "Other Edible grains" means any edible grains (including oil seeds) other than the one which is under consideration;
- (3) "Damaged grains" means grains that are sprouted or internally damaged as a result of heat, microbe, moisture or weather viz., ergot affected grains and karnal bunt grains;
- (4) "Immature and shrivelled grains" means grains that are not properly developed;
- (5) "Weevilled grains" means grains that are partially or wholly bored by insects injurious to grains but does not include germ eaten grains and egg spotted grains.
- (6) "Poisonous, toxic and/or harmful seeds" means any seed which if present in quantities above permissible limit may have damaging or dangerous effect on health, organoleptic properties or technological performance such as dhatura (*D.fastuosa* linn and *D. stramonium* linn.) corn cokle (*Agrostemma githago* L. *Machai Lallium remulenum* linn.) Akra (*Vicia* species).

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